

SENATE BILL 2346

By Haile

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, Part 5; Title 37; Title 49 and Title 71,
relative to background investigations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-5-413, is amended by deleting subsection (e) and substituting:

(e)

(1) The department of education, the state board of education, local boards of education, public charter schools, LEAs, participating schools, and private schools that enroll recipients shall not hire or retain, and the state board of education shall not grant a license, reactivate an expired license, restore a revoked license, or grant a temporary teaching permit to, an individual found by the department of children's services to have committed child abuse, severe child abuse, child sexual abuse, or child neglect pursuant to title 37. The department of children's services shall not report an individual or employee as a perpetrator unless the department of children's services has first determined that the due process rights of the individual or employee were either offered but not accepted or fully exhausted or concluded, pursuant to the department of children's services rules and pursuant to state and federal law.

(2) Any individual who is currently employed with, or has been conditionally offered employment with, the department of education, the state board of education, any local board of education, public charter school, LEA, participating school, or private school that enrolls a recipient and has ever been

found by the department of children's services to have committed child abuse, severe child abuse, child sexual abuse, or child neglect, shall be offered due process rights. Once the due process rights of the individual or employee have either been offered but not accepted, or have been fully concluded and the finding upheld, the department of children's services shall disclose such finding to the department of education, the state board of education, local board of education, public charter school, LEA, participating school, or private school.

(3) If an individual is currently employed with, or has been conditionally offered employment with, the department of education, the state board of education, any local board of education, public charter school, LEA, participating school, or private school that enrolls a recipient, and the department of children's services has ever found the individual to have committed child abuse, severe child abuse, child sexual abuse, or child neglect, but the due process rights of the individual or employee have not yet been offered or are still pending, the department of children's services shall conduct an emergency file review to determine if the individual poses an immediate threat to the health, safety, or welfare of children. If the emergency file review results in a finding that the individual poses an immediate threat to the health, safety, or welfare of children, then the department of children's services shall disclose the threat to the department of education, the state board of education, local board of education, public charter school, LEA, participating school, or private school.

(4) If an individual is currently employed with, or has been conditionally offered employment with, the department of education, the state board of education, any local board of education, public charter school, LEA, participating school, or private school that enrolls a recipient, and the department of children's

services has commenced an investigation of the individual that has not yet been concluded, then the department of children's services shall conduct an emergency file review to determine if the individual poses an immediate threat to the health, safety, or welfare of children. If the emergency file review results in a finding that the individual poses an immediate threat to the health, safety, or welfare of children, then the department of children's services shall disclose the threat to the department of education, the state board of education, local board of education, public charter school, LEA, participating school, or private school.

(5) If due process proceedings have been stayed due to a pending criminal charge against an individual who is currently employed or has been conditionally offered employment by the department of education, the state board of education, any local board of education, public charter school, LEA, participating school, or private school that enrolls a recipient, then the department of children's services shall notify the department of education, the state board of education, local board of education, public charter school, LEA, participating school, or private school of the pending criminal charge.

(6) The department of education, the state board of education and the department of children's services, in consultation, shall develop a procedure whereby local boards of education, public charter schools, LEAs, participating schools, and private schools that enroll recipients may submit to the department of children's services the names of current employees and individuals who have been conditionally offered employment with the local board of education, public charter school, LEA, participating school, or private school, to determine if the employee or individual has been found by the department of children's services to have committed child abuse, severe child abuse, child sexual abuse, or child

neglect, or to pose an immediate threat to the health, safety, or welfare of children. Upon submission by the local board of education, public charter school, LEA, participating school, or private school of the names of current employees and individuals who have been conditionally offered employment, the department of children's services shall timely provide the local board of education, public charter school, LEA, participating school, or private school with the information in subdivisions (e)(2)-(5).

(7) The department of education, the state board of education, local boards of education, public charter schools, LEAs, participating schools, and private schools that enroll recipients shall not hire or retain, and the state board of education shall not grant a license, reactivate an expired license, restore a revoked license, or grant a temporary teaching permit to, an individual whose name has been placed on the state's vulnerable person's registry, the state's sex offender registry, or on a registry similar to this state's vulnerable person's registry or this state's sex offender registry in another jurisdiction.

(8) The department of children's services may promulgate rules to effectuate the procedures described in subdivisions (e)(2)-(5). The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(9) As used in this subsection (e):

(A) "Participating school" has the same meaning as defined in §§ 49-6-2602 and 49-10-1402;

(B) "Private school" has the same meaning as defined in § 49-6-3502; and

(C) "Recipient" has the same meaning as defined in § 49-6-3502.

SECTION 2. Tennessee Code Annotated, Section 49-6-2607(e), is amended by adding the following as a new subdivision:

(6) Comply with § 49-5-413(e).

SECTION 3. Tennessee Code Annotated, Title 49, Chapter 6, Part 35, is amended by adding the following as a new section:

A private school that enrolls recipients shall comply with § 49-5-413(e).

SECTION 4. Tennessee Code Annotated, Section 49-10-1404(b), is amended by adding the following as a new subdivision:

(4) Comply with § 49-5-413(e).

SECTION 5. Tennessee Code Annotated, Section 71-3-503, is amended by adding the following as a new subsection:

(g)

(1) A child care agency that is exempt from licensing pursuant to subsection (b) may request that the department of human services conduct a review of an employee or potential employee of the exempt child care agency to determine whether the employee or potential employee has a record of perpetrating the abuse or neglect of children or adults, as indicated in the records of the department of children's services or the department of human services.

(2) The department of human services, in consultation with the department of children's services, shall create a form for an exempt child care agency to request a review pursuant to this subsection (g).

(3) The department of human services shall conduct a review requested in accordance with this subsection (g).

(4) The department of human services may promulgate rules to effectuate the purposes of this subsection (g), including rules to identify the

information the department must release to an exempt child care agency after a review is conducted pursuant to this subsection (g) to ensure compliance with all relevant privacy laws. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 6. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.